

Athens, 26-06-2023

Ref. No.: 1633

DECISION 21/2023

(Section)

The Hellenic Data Protection Authority convened in a Section composition via teleconference on 17-05-2022 at 10:00 a.m. following an invitation from its President, in order to examine the case referred to in the background of this document. Participating in the meeting via teleconference was Georgios Batzalexis, Deputy President, due to the absence of the President of the Authority, Konstantinos Menoudakos, and present were the alternate member Georgios Kontis, as rapporteur, as well as the alternate members Dimosthenis Bougioukas and Maria Psalla, replacing the regular members Konstantinos Lamprinoudakis and Grigorios Tsolias who were unable to attend despite being duly summoned in writing. Also present at the meeting, by order of the President without voting rights, were Charis Symeonidou, special scientist – auditor as assistant rapporteur, and Irini Papageorgopoulou, employee of the administrative affairs department of the Authority, as secretary. The Authority took into account the following:

A complaint was submitted to the Authority under ref. no. G/EIS/11726/12-11-2022 by A against the telecommunications providers OTE S.A. and Vodafone S.A., according to which the respondents "violated the confidentiality of his telecommunications and his right to personal data, as determined by the Hellenic Authority for Communication Security and Privacy (ADAE) in its decisions 233/2021 and 234/2021," which the complainant submitted with the complaint. The complainant also stated that a criminal prosecution had already been initiated against the legal representatives of the two companies for the violation of the confidentiality of his telecommunications and requested "the punishment of the two companies" from the Hellenic Data Protection Authority, as he argued "according to the two decisions (of the ADAE) they also violated the relevant legislation" (on the protection of personal data). Subsequently, with the act of archiving dated 21/12/2022, which was communicated to the complainant with the document G/EXE/38/5-1-2023 of the Authority, the above complaint was archived as without object with the following reasoning:

"The applicant submits to the Authority the decisions no. 233/2021 and 234/2021 of the ADAE, according to which two telecommunications providers violated the existing legislation on the confidentiality of communications. With these decisions, an administrative sanction in the form of a monetary fine was imposed on the two providers. In this specific case, the general principle of law non bis in idem applies, which is also accepted by the European Court of Human Rights (ECHR) and means that double prosecution or conviction is prohibited in cases where a decision on the merits of the case has been issued by another competent authority. Specifically, in these particular cases, the factual incidents constitute an infringement of the same legal good and serve the same protective purposes, so a second temporal examination of the same liable party for the same (or substantially similar) factual incidents would violate the principle of non bis in idem."

Following this, the complainant submitted the application under ref. no. G/EIS/83/5-1-2023 for reconsideration against the above act of archiving ("objection" as referred to by the complainant), claiming that the decisions of the ADAE 233/2021 and 234/2021 concerning his case are not final because, as he argues, they have not yet been scheduled for hearing by the Administrative Court of Appeal (note: the appeals filed against them). To support his claims, the complainant submits for each of the aforementioned decisions a relevant depiction from the Case Monitoring application of the Administrative Court of Appeal of Athens, from which it appears that a) against the decision 233/2021 of the ADAE an appeal has been filed under registration number ... by OTE, and b) against the decision 234/2021 of the ADAE an appeal has been filed under registration number ...

on behalf of the company VODAFONE, and which have not yet been brought before a Department for adjudication. Furthermore, the complainant invokes decisions 38/2022 and 39/2022 of the Authority, which rejected the claims of the companies OTE and VODAFONE regarding the application of the

principle of non bis in idem in a similar case, arguing that the Authority has issued contradictory decisions on the same issue. Specifically, in these decisions of the Authority, the following is accepted: "According to Article 4 paragraph 1 of the 7th Protocol of the European Convention on Human Rights (ECHR), which was ratified by Article one of Law 1705/1987 (Government Gazette 89 A'), 'no one shall be prosecuted or punished by the courts of the same State for an offense for which they have already been acquitted or convicted by a final judgment in accordance with the law and the criminal procedure of that State.' This provision establishes the principle of non bis in idem, which, as is consistently accepted by the case law of the European Court of Human Rights (ECHR), the Court of Justice of the European Union (CJEU), and the Council of State (CoS), applies not only to criminal sanctions but also in cases where the relevant legislation provides for the imposition of serious administrative sanctions, such as high fines. A basic prerequisite for the application of the principle of non bis in idem, according to the case law of the CoS, is that a sanction has been imposed within the framework of an administrative procedure, which has been finalized, either due to the non-exercise of legal remedy or due to the rejection of the legal remedy that has been exercised (CoS 951/2018, 4309/2015). In this case, as emerges from the memorandum of the complained company, the Hellenic Authority for Communication Security and Privacy (ADAE) has imposed sanctions against it only in two cases (B, C), against which the complained party already states that it intends to appeal before the competent Court. Therefore, there is no case of the imposition of a finalized sanction by the ADAE that would prevent the examination of the complaints at issue by the Authority, in application of the principle of non bis in idem. Regardless of this, the violations examined in this case constitute an infringement of a legal interest different from that which is affected by the violations for which sanctions have been imposed on the company by the ADAE and which exclusively concern the application or non-application of the policies of the responsible processors (Article 12 paragraph 3 subparagraph c of Law 3471/06) and not, apart from this, the effectiveness of the measures described therein and followed based on them, which ultimately, although implemented, were not sufficient to prevent the established incidents of subscriber data violations. ... Therefore, for this reason, the principle of non bis in idem does not apply in this case according to the recent case law of the CoS (see CoS 433/2021, 1771/2019, 3473/2017), which accepts that it is possible to impose two administrative sanctions on the same offender for the same factual circumstances by different administrative bodies or independent administrative authorities, if their imposition aims at the protection of particularly important and different legal interests because any inability to impose one of the two administrative sanctions in application of the principle of non bis in idem, since one of them has already been imposed and finalized, would render inactive the obligation that different state bodies have under the Constitution to protect those affected in their individual rights (CoS 433/2021, 3473/2017) and that this principle neither prohibits the cumulative imposition of sanctions by invoking provisions that are in true ideal concurrence nor imposes "unity of procedure" (una via), and, precisely for this reason, it cannot be considered that it prohibits the imposition of these sanctions by different authorities with independent and autonomous procedures (CoS 1771/2019). The Authority, after examining the elements of the file, having heard the rapporteur and the assistant rapporteurs, and after thorough discussion, **CONSIDERED IN ACCORDANCE WITH THE LAW**

1. According to Article 24 paragraph 1 of Law 2690/1999 (Administrative Procedure Code), "If the relevant provisions do not provide for the possibility of exercising, according to the next article, a special administrative or administrative appeal, the interested party, for the restoration of material or moral damage to their legal interests caused by an individual administrative act, may, for any reason, by application, request either from the administrative authority that issued the act, the revocation or modification of it (request for remedy), or from the authority that

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"the one who issued the act, its annulment (hierarchical appeal)." According to the true meaning of the provision, the request for remedy aims at the revocation or modification of the contested individual administrative act for legal or factual defects that relate to the regime under which it was issued.

2. As emerges from the content of the application under consideration, the applicant submits and invokes two new elements, which were not taken into account by the Authority during the issuance of

the contested act of filing, specifically the attachments to his application G/EIS/83/5-1-2023, which are representations from the Case Monitoring Application of the Administrative Court of Appeals of Athens, from which it appears that a) an appeal has been submitted against decision 233/2021 of the ADAE with registration number ... on behalf of OTE, and b) an appeal has been submitted against decision 234/2021 of the ADAE with registration number ... on behalf of the company VODAFONE, which have not yet been brought before a Department for adjudication. Therefore, the sanctions imposed by the aforementioned decisions of the ADAE on the companies reported in the complaint G/EIS/11726/2022 have not been finalized in such a way that the principle of non bis in idem applies in this case.

Consequently, taking into account the above new elements submitted, the Authority re-examines the complaint under reference number G/EIS/11726/2022 of the applicant, the subject of which is as follows: "The two telecommunications providers violated the confidentiality of my telecommunications and my right to my personal data, as determined by the ADAE in its decisions 233/2021 and 234/2021, which I am also forwarding to you. Furthermore, among other things, criminal charges have already been brought against the legal representatives of the two companies for the violation of the confidentiality of my telecommunications. I request the punishment of the two companies by the Personal Data Protection Authority as, according to the two decisions, they violated the relevant legislation." Therefore, in light of the submission and invocation of new elements by the applicant, the application for remedy under consideration should be accepted, and after the annulment of the contested act with reference number G/EXE/38/05-01-2023 dated 21/12/2022, the complaint G/EIS/11726/2022 of the applicant should be further examined.

3. With the aforementioned complaint, the complainant states that "the two telecommunications providers violated the confidentiality of my telecommunications and my right to my personal data, as determined by the ADAE in its decisions 233/2021 and 234/2021, which I am also forwarding to you." This claim is made vaguely, as the complainant does not explain how his right to the protection of his personal data was violated. From the review of decisions 233/2021 and 234/2021 of the ADAE, it appears that in the context of the audit conducted, the following factual incidents were established: Due to incorrect billing of the complainant's telephone connection (...), in the context of implementing portability of that connection to the Vodafone network, during the period of the malfunction from 20.02.2017 to 03.03.2017, the complainant used the connection ... (of a third subscriber), while the connection ... of the complainant was used by the subscriber of the connection As a result of the above, the company OTE AE was attributed the risk of violating the confidentiality of communications in violation of the applicable legislation on the protection of the confidentiality of communications. Additionally, it was found that regarding the complainant's connection ..., during the period of the incorrect billing, the company VODAFONE took measures to protect the confidentiality of the complainant's free communication concerning incoming calls, by providing free forwarding of incoming calls to the mobile connection he declared; however, it did not take corresponding measures regarding outgoing calls from the same connection (such as, for example, blocking calls), resulting in 23 outgoing calls (14 outgoing and 9 unanswered) being made on behalf of the user of the connection ..., from the complainant's connection, and correspondingly 60 calls on behalf of the complainant, from the connection

4. From the aforementioned factual incidents, it does not emerge that there was a violation of the personal data of the complainant, in

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In contrast to the cases examined by the Authority in the context of issuing decisions 38/2022 and 39/2022, which the complainant cites, in those cases the replacement of the SIM card resulted, in some instances, in the leakage of information intended for the subject (such as, for example, SMS to third parties). In this case, and contrary to the claims made by the complainant, the ADAE in its aforementioned decisions did not find a violation of the legislation on the protection of personal data. The only violation identified by the ADAE in decisions 233/2021 and 234/2021, which the complainant submits and invokes, concerned compliance with the legislation on the protection of the confidentiality of communications, while the sole reference of those decisions to the relevant provisions of Law 3471/2016 is found in point 2 of the elements considered by the ADAE, among others, in the context of

examining the cases on which they were issued, without, however, any point indicating that the ADAE found a violation of this specific legislation. The relationship between these provisions constitutes a special (confidentiality of communications) to general (personal data) relationship; therefore, where the legislation on the protection of the confidentiality of communications applies, it prevails as more specific, while the legislation for the protection of personal data operates complementarily and specifies those points left unregulated by the legislation on the protection of the confidentiality of communications (mainly the basic principles of processing, see also Opinion 5/2019 of the EDPS regarding the interaction between Directive 2002/58/EC on the protection of privacy in the electronic communications sector and the GDPR, particularly regarding the competence, duties, and powers of data protection authorities). Moreover, the applicant/complainant does not invoke a single factual incident that would substantiate a specific violation of the GDPR or the provisions of Law 3471/2006, falling within the Authority's jurisdiction. The legislation on the protection of the confidentiality of telecommunications applies as more specific to the matters it regulates, in relation to the general legislation on the protection of personal data. Therefore, it follows that the aforementioned factual incidents identified by the ADAE do not constitute a violation of the provisions that fall within the regulatory jurisdiction of the Authority.

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FOR THESE REASONS
THE AUTHORITY

1. Accepts the request for remedy, in light of the submission and invocation of new evidence by the applicant.
2. Revokes the contested act no. G/EXE/38/05-01-2023 of 21/12/2022, which archived the complaint.
3. Dismisses the complaint no. G/EIS/11726/12-11-2022 as vague and, insofar as it concerns the violation of the complainant's communication confidentiality, considers itself materially incompetent.

The President

Georgios Batzalexis

The Secretary

Irini Papageorgopoulou